Sr. No.

HIGH COURT OF JAMMU & KASHMIR AND LADAKH AT JAMMU

Crl A(D) No. 03/2020

Reserved on : 06.08.2026
Pronounced on: 10.08.2026
Uploaded on: 10.08.2026

Aaqib Ahmed Mir ....Applicant

Through: Mr. I. H. Bhat, Advocate
Mr. Rohit Sharma, Advocate

Vs

UT of J&K and anr.

…Respondent

Through: Mr. Pallavi Sharma, Advocate vice
Mr. Ravinder Gupta, AAG.

CORAM: HON'BLE MRS. JUSTICE SINDHU SHARMA, JUDGE
HON'BLE MR. JUSTICE RAJESH SEKHRI, JUDGE

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ORDER

CrlM No. 265/2024 in Crl A(D) No. 03/2020
(Rajesh Sekhri-J)

1. This application has been preferred by the applicant/convict-Aaqib Ahmed Mir, for suspension of sentence and bail till final adjudication of the main appeal.

2. Applicant has preferred statutory criminal appeal against the judgment of conviction dated 31.12.2019 and order of sentence dated 01.01.2020 passed by learned Additional Sessions Judge, Jammu in, Criminal Challan Case No. 79/Ch/2016 (JKJM010004182016), titled *State of J&K v. Aaqib Ahmed Mir and ors.*, vide which, he has been sentenced to undergo rigorous imprisonment

for a period of twelve years and pay fine of Rs.1,00,000/-. In default of payment of fine, he has been directed to undergo rigorous imprisonment of six months, for the commission of offences punishable under Sections 8/20/29 of the NDPS Act. Applicant seeks suspension of sentence and enlargement on bail primarily on the ground that he is behind the bars for more than 11 years and there is no likelihood of his appeal being heard and disposed of soon.

3. Objections have not been filed. However, as per the nominal roll submitted by the jail authorities, the applicant/convict-Aaqib Ahmed Mir has remained under continuous incarceration for 11 years and 02 months as on 06.08.2026.

4. Hon'ble Supreme Court and this Court have consistently held that convicts, who have undergone prolonged incarceration, and there is no likelihood of their appeals being heard and disposed of soon, shall be released on bail.

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5. Hon'ble Supreme Court in **Saudan Singh v. The State of Uttar Pradesh (Criminal Appeal No. 308/2022 dated 25.02.2022)** has held that if accused have already completed 14 years of actual sentence, the State itself should take an appropriate stand and Court shall pass appropriate orders for release of convicts on bail and absence of the advocate cannot come in the way in such a scenario and that where a person has served more than 10 years of sentence, he can be considered for bail unless there are extenuating circumstances against him. A similar view has been taken in **Sanjay Bhatt v. State of Uttar Pradesh and another (Criminal Appeal No. 624 of 2022 dated 13.04.2022)** and **Baljinder Singh @**

Gogi v. The State of Punjab (Special Leave to Appeal (Crl.) No. 7322 of 2021 dated 30.11.2021).

6. Division Benches of this Court in **Bashir Ahmed and ors. v. UT of J&K [Crl A(D) No. 6 of 2022 dated 08.02.2023]** and **Ajeet Singh and ors. State of J&K (IA No. 01/2019 in CRA No. 6/2014 dated 25.02.2019)** has followed the same principal.

7. Further, Hon'ble Supreme Court in **Sonadhar v. The State of Chattisgarh [2002 LiveLaw (SC) 788]** has held as below:

> ***"It is pointed out that in the State of Bihar, there are 363 convicts who have completed more than 14 years of custody. The norm for premature release is stated to be 14 years actual custody and 20 years with remission. There are also some convicts who may not be entitled to premature release. There are stated to be now 268 convicts whose cases are being considered for premature release. We consider appropriate to issue directions in terms of the aforesaid suggestions to the Patna High Court and on a pari materia basis to even the other High Courts. However, in order to carry out this exercise, the data would have to be compiled of such of the persons who have been in custody for more than 10 years and more than 14 years, with these persons being considered for grant of bail pending appeal, if there is no chance of hearing of the appeal in the near future, unless there are reasons for denial of bail. We can understand if any of the parties is delaying the appeal itself but short of that, we are of the view that all persons who have completed 10 years of sentence and appeal is not in proximity of hearing with no extenuating circumstances should be enlarged on bail."***

8. Having regard to what has been observed and discussed above, legal position with respect to enlargement of convicts/appellants on bail, in cases involving prolonged incarceration and there being no proximity of hearing of appeals, is by far crystallized now. Applicant-appellant in the present cases has already undergone incarceration of more than 11 years and there is nothing on the record to suggest that the applicant-appellant, in any manner, has contributed to the delay in disposal of the appeal.

9. In view of the aforesaid proposition of law and taking into account the period of incarceration, we are inclined to suspend the sentence imposed by the trial court and release the applicant/appellant on bail, subject, however, to the following conditions that:

a. he shall furnish two surety bonds in the amount of Rs.1,00,000/- each, to the satisfaction of Registrar Judicial of this Court and a bond of personal recognizance of the like amount to the satisfaction of Superintendent of the concerned Jail;
b. he shall not leave territorial jurisdiction of this Court without prior permission;
c. he shall not commit an offence similar to the offence of which he is accused; and
d. he shall remain present in this Court during the hearings of the main appeal.

10. With the aforesaid directions, the present application stands disposed of.

11. List the main appeal on 17.09.2026.

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(Rajesh Sekhri)
Judge

(Sindhu Sharma)
Judge

Jammu
10.08.2026
Paramjeet

Whether the judgment is speaking: Yes/No
Whether the judgment is reportable: Yes/No